

IN THE SENATE

SENATE BILL NO. 1325

BY STATE AFFAIRS COMMITTEE

AN ACT

RELATING TO MOTOR VEHICLE LICENSE PLATES; AMENDING SECTION 49-402, IDAHO CODE, TO PROVIDE FOR A CERTAIN FEE AND TO MAKE A TECHNICAL CORRECTION; AMENDING CHAPTER 4, TITLE 49, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 49-417G, IDAHO CODE, TO ESTABLISH WHITE AND BLACK LICENSE PLATES; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 49-402, Idaho Code, be, and the same is hereby amended to read as follows:

49-402. ANNUAL REGISTRATION. (1) The annual fee for operating each pickup truck, each neighborhood electric vehicle and each other motor vehicle having a maximum gross weight not in excess of eight thousand (8,000) pounds and that complies with the federal motor vehicle safety standards as defined in section 49-107, Idaho Code, shall be:

Vehicles one (1) and two (2) years old	\$69.00
Vehicles three (3) and four (4) years old	\$57.00
Vehicles five (5) and six (6) years old	\$57.00
Vehicles seven (7) and eight (8) years old	\$45.00
Vehicles over eight (8) years old	\$45.00

There shall be twelve (12) registration periods, starting in January for holders of validation registration stickers numbered 1, and proceeding consecutively through December for holders of validation registration stickers numbered 12, each of which shall start on the first day of a calendar month and end on the last day of the twelfth month from the first day of the beginning month. Registration periods shall expire at midnight on the last day of the registration period in the year designated by the validation registration sticker. The numeral digit on the validation registration stickers shall, as does the registration card, fix the registration period under the staggered registration system for the purpose of reregistration and notice of expiration.

A vehicle that has once been registered for any of the above-designated periods shall, upon reregistration, be registered for the period bearing the same number, and the registration card shall show and be the exclusive proof of the expiration date of registration and licensing. Vehicles may be initially registered for less than a twelve (12) month period, or for more than a twelve (12) month period, and the fee prorated on a monthly basis if the fractional registration tends to fulfill the purpose of the monthly series registration system.

(2) For all school buses operated either by a nonprofit, nonpublic school or operated pursuant to a service contract with a school district for transporting children to or from school or in connection with school-approved activities, the annual fee shall be twenty-four dollars (\$24.00) and

1 shall be subject to staggered registration for the purpose of reregistration
2 and notice of expiration.

3 (3) For all motorcycles and motor-driven cycles that comply with the
4 federal motor vehicle safety standards, operated on the public highways, the
5 annual fee shall be nineteen dollars (\$19.00) and shall be subject to stag-
6 gered registration for the purpose of reregistration and notice of expira-
7 tion.

8 (4) For operation of an all-terrain vehicle, utility type vehicle or
9 motorbike, excluding a motorbike with an engine displacement of fifty (50)
10 cubic centimeters or less, on city, county or highway district roads or
11 highways open to such use, a restricted vehicle license plate fee pursuant
12 to section 49-450, Idaho Code, shall be paid. In addition, the certifi-
13 cate of number fee specified in section 67-7122, Idaho Code, shall be paid
14 as provided in section 67-7122, Idaho Code. The certificate of number and
15 restricted vehicle license plate exemption provided in section 49-426(2),
16 Idaho Code, applies to all-terrain vehicles, utility type vehicles, motor-
17 bikes and motorcycles used for the purposes described in section 49-426(2),
18 Idaho Code. Nonresidents shall be allowed to purchase a restricted vehicle
19 license plate and validation sticker pursuant to section 67-7124, Idaho
20 Code, for an all-terrain vehicle, utility type vehicle, or motorbike.

21 (5) For all motor homes, the fee shall be as specified in subsection (1)
22 of this section and shall be in addition to the fees provided for in section
23 49-445, Idaho Code.

24 (6) Registration fees shall not be subject to refund.

25 (7) A financial institution or repossession service contracted to
26 a financial institution repossessing vehicles under the terms of a secu-
27 rity agreement shall move the vehicle from the place of repossession to the
28 financial institution's place of business on a repossession plate. The
29 repossession plate shall also be used for demonstrating the vehicle to a
30 prospective purchaser for a period not to exceed ninety-six (96) hours. The
31 registration fees for repossession plates shall be as required in subsection
32 (1) of this section for a vehicle one (1) and two (2) years old. All other
33 fees required under chapter 4, title 49, Idaho Code, shall be in addition to
34 the registration fee. The repossession plate shall be subject to staggered
35 registration for the purpose of reregistration and notice of expiration.

36 (8) A wrecker or towing business engaged in the process of towing motor-
37 ized vehicles that have been wrecked, abandoned, salvaged or may be disabled
38 may apply for a wrecker plate to be displayed on those vehicles being towed,
39 provided the power unit is properly registered under this chapter. The reg-
40 istration fees for wrecker plates shall be as required in subsection (1) of
41 this section for a vehicle one (1) and two (2) years old. All other fees re-
42 quired under chapter 4, title 49, Idaho Code, shall be in addition to the reg-
43 istration fee and shall be subject to staggered registration for the purpose
44 of reregistration and notice of expiration.

45 (9) In addition to the annual registration fee in this section, there
46 shall be an initial program fee of twenty-five dollars (\$25.00) and an annual
47 program fee of fifteen dollars (\$15.00) for all special license plate pro-
48 grams for those license plates issued pursuant to sections 49-404A, 49-407,
49 49-408, 49-409, 49-414, 49-416, 49-418 and 49-418D, Idaho Code. For special
50 plates issued pursuant to sections 49-417E, and 49-417G, Idaho Code, there

shall be an initial program fee of seventy dollars (\$70.00) and an annual program fee of fifty dollars (\$50.00). For special plates issued pursuant to sections 49-406 and 49-406A, Idaho Code, there shall be an initial program fee of twenty-five dollars (\$25.00) but there shall be no annual renewal fee. For special plates issued pursuant to sections 49-415D, 49-417, 49-417A, 49-417B, 49-417C, 49-417D, 49-418A, 49-418B, 49-418C, 49-419, 49-419A, 49-419C, 49-419E, 49-420, 49-420A, 49-420B, 49-420C, 49-420D, 49-420E, 49-420J, 49-420K, 49-420L, 49-420M, 49-420N, 49-420O, 49-420P, 49-420Q, 49-420R, 49-420S, ~~and 49-420T, and 49-420T~~ 49-420U, Idaho Code, and unless otherwise expressly provided for in this chapter, any new special plate program effective on and after January 1, 2013, pursuant to section 49-402D, Idaho Code, there shall be an initial program fee of thirty-five dollars (\$35.00) and an annual program fee of twenty-five dollars (\$25.00). The fees contained in this subsection shall be applicable to all new special plate programs and shall be subject to staggered registration for the purpose of reregistration and notice of expiration. The initial program fee and the annual program fee shall be deposited in the state highway account and shall be used to fund the cost of administration of special license plate programs, unless otherwise specified by law.

(10) Any vehicle that does not meet federal motor vehicle safety standards shall not be registered and shall not be permitted to operate on public highways of the state, as defined in section 40-117, Idaho Code, unless otherwise specifically authorized.

(11) In addition to annual registration fees as provided in this section, registrants may pay a fee to purchase an Idaho state parks passport authorizing resident motor vehicle entry into all Idaho state parks. Registrants may pay the fee for a one (1) year or two (2) year period of time. The fee shall be ten dollars (\$10.00) for one (1) year and twenty dollars (\$20.00) for two (2) years. All fees collected pursuant to this subsection shall be deposited into the park and recreation fund and shall be subject to appropriation. Fees collected pursuant to this subsection shall not be considered a motor vehicle registration fee as provided in section 17, article VII of the constitution of the state of Idaho.

SECTION 2. That Chapter 4, Title 49, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 49-417G, Idaho Code, and to read as follows:

49-417G. WHITE AND BLACK LICENSE PLATES. (1) On and after July 1, 2026, any person who is the owner of a vehicle registered under the provisions of section 49-402, Idaho Code, or registered under any other section of law for which the purchase of special plates is allowed, may apply for and, upon department approval, receive special white and black license plates in lieu of regular license plates.

(2) The provisions of this section shall not apply to any vehicle with a registered maximum gross weight over twenty-six thousand (26,000) pounds. Availability of the white and black license plates for other vehicles shall be subject to the rules, policies, and procedures of the department.

(3) In addition to the regular registration fee required pursuant to this chapter, the applicant shall be charged a fee of seventy dollars (\$70.00) for the initial issuance of plates and fifty dollars (\$50.00) for

1 each succeeding annual registration. Five dollars (\$5.00) of the initial
2 fee and five dollars (\$5.00) of the renewal fee shall be deposited in the
3 state highway account and shall be used to fund the cost of administration
4 of this special license plate program. Sixty-five dollars (\$65.00) of each
5 initial fee and forty-five dollars (\$45.00) of each renewal fee shall be
6 transferred by the state treasurer to the Idaho law enforcement fund created
7 pursuant to section 67-2914, Idaho Code, and shall be used exclusively for
8 the purposes described in section 49-454(3), Idaho Code.

9 (4) Whenever title or interest in a vehicle registered under the pro-
10 visions of this section is transferred or assigned, the owner may transfer
11 the special plates to another vehicle upon payment of the required transfer
12 fees. The owner may only display the plates on another vehicle upon receipt
13 of the new registration from the department.

14 (5) Notwithstanding the provisions of section 49-402C, Idaho Code, the
15 white and black license plate shall have a white background and black charac-
16 ters. The design shall be approved by the department, utilizing a numbering
17 system as determined by the department. Initial costs of the plate program,
18 including costs of plate design, shall be paid by the Idaho law enforcement
19 fund.

20 (6) The white and black license plate established in this section shall
21 be exempt from the requirements of section 49-402D, Idaho Code.

22 (7) Sample white and black license plates may be purchased for a fee of
23 thirty dollars (\$30.00), five dollars (\$5.00) of which shall be deposited in
24 the state highway account and twenty-five dollars (\$25.00) of which shall be
25 transferred to the Idaho law enforcement fund and shall be used exclusively
26 for the purposes described in section 49-454(3), Idaho Code. No additional
27 fee shall be charged for personalizing sample plates.

28 SECTION 3. An emergency existing therefor, which emergency is hereby
29 declared to exist, this act shall be in full force and effect on and after
30 July 1, 2026.